surrendered or diminished, whether it be the taxing power, or any other affecting the public interest, the same principle applies and the rule of construction must be the same. No one will question, that the interests of the great body of the people of the state, would, in this instance, be affected by the surrender of this great line of travel to a single corporation, with the right to exact toll and exclude competition for seventy years. While the rights of private property are sacredly guarded, we must not forget, that the community also have rights; and that the happiness and well-being of every citizen depends on their faithful preservation.

The act of incorporation of the proprietors of the Charles river bridge, is in the usual form, and the privileges such as are commonly given to corporations of that kind; it confers on them the ordinary faculties of a corporation, for the purpose of building the bridge, and establishes certain rates of toll which the company are authorized to take. This is the whole grant; there is no exclusive privilege given to them over the waters of Charles river, above or below their bridge; no right to erect another bridge themselves, nor to prevent other persons from erecting one; no engagement from the state, that another shall not be erected; and no undertaking not to sanction competition, nor to make improvements that may *diminish the amount of its income. Upon all these subjects, the charter is silent; and nothing is [*423 said in it about a line of travel, so much insisted on in the argument, in which they are to have exclusive privileges; no words are used, from which an intention to grant any of these rights can be inferred; if the plaintiffs are entitled to them, it must be implied simply from the nature of the grant, and cannot be inferred from the words by which the grant is made.[1]

Amid the multitude of cases which have occurred, and have been daily occurring, for the last forty or fifty years, this is the first instance in which such an implied contract has been contended for; and this court is called upon to infer it from an ordinary act of incorporation containing nothing more than the usual stipulations and provisions to be found in every such law. The absence of any such controversy, where there must have been so many occcasions to give rise to it, proves, that neither states, nor individuals, nor corporations, ever imagined that such a contract can be implied from such charters; it shows, that the men who voted for these laws never imagined that they were forming such a contract; and if it is maintained that they have made it, it must be by a legal fiction, in opposition to the truth of the fact, and the obvious intention of the party. The court cannot deal thus with the rights reserved to the states; and by legal intendments and mere technical reasoning take away from them any portion of that power over their own internal police and improvement, which is so necessary to their well-being and prosperity.

Let it once be understood, that such charters carry with them these implied contracts, and give this unknown and undefined property in a line of travelling; and you will soon find the old turnpike corporations awaking from their sleep, and calling upon this court to put down the improvements which have taken their place. The millions of property which have been invested in rail-roads and canals upon lines of travel which had been before occupied by turnpike corporations, will be put in jeopardy; we shall be thrown back to the improvements of the last century; and be obliged to stand still, until the claims of the old turnpike corporations shall be satisfied, and they shall consent to permit these states to avail themselves of the lights of modern science, and to partake of the benefit of those improvements, which are now

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[1] See notes to the case of Dartmouth College *v.* Woodward, 4 Wheat, 518. It is settled, at this day, that the grant of the right to erect a toll-bridge across a river is not necessarily exclusive. Mohawk Bridge Co. *v.* Utica and Schenectady Railroad Co., 6 Paige 554; Oswego Falls Bridge Co. *v.* Fish, 1 Barb. Ch. 547; Fort Plain Bridge Co. *v.* Smith, 30 N. Y. 44. But a provision in the charter, that it shall not be lawful for any person or persons to erect any other bridge, within two miles, either above or below that of the corporation, amounts to a contract, which the legislature cannot violate, by a subsequent grant to another company. Chenango Bridge Co. *v.* Binghamton Bridge Co., 3 Wall. 51. But the grant of an exclusive right to maintain a toll-bridge, within certain limits, is not violated by the grant of a right of ferry, within the same limits. Parrott *v.* City of Lawrence, 2 Dill. 332. And in Pennsylvania, it has been held, that a legislative grant of an exclusive right to maintain a ferry, may be repealed, unless founded upon a valuable consideration. Johnson *v.* Crow, 87 Penn. St. 184. So, it has been determined, that the grant of a ferry right to a public municipal corporation is not a contract, and therefore, the legislative may, at any time, repeal the grant. East Hartford *v.* Hartford Bridge Co., 10 How. 511. See Fanning *v.* Gregoire, 16 Id. 524.